

Court No. - 39

Case :- WRIT - C No. - 10486 of 2017

Petitioner :- M/S Ganga Devi Pyare Lal Cold Storage Pvt. Ltd.

Respondent :- State Of U.P. & 5 Others

Counsel for Petitioner :- Rajendra Prasad Dubey, Satyendra Nath Tripathi

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

This petition seeks the quashing of the recovery notice dated 16 February 2017 that has been sent by the Executive Engineer for a sum of Rs. 48,70,962/- with collection charges.

It is stated that the petitioner had earlier filed Writ C No. 69280 of 2015 for fixing instalments, in which the Court directed that on deposit of Rs. 10,00,000/-, the electricity connection of the petitioner be restored after completion of necessary formalities. The electricity of the petitioner has again been disconnected on account of non payment of bills.

Learned counsel for the petitioner has submitted that the petitioner may be permitted to deposit the amount in instalments.

Learned counsel appearing for the respondents has invited attention of the Court to the provisions of Section 6.14 of the Electricity Supply Code, 2005 and has submitted that the petitioner can invoke this remedy before the Department for fixing instalments. Thus, the petitioner can take recourse to Clause 6.14 of the Electricity Supply Code, 2005.

The Court, therefore, declines to entertain this petition. The writ petition is, accordingly, dismissed.

Order Date :- 8.3.2017

Ashish Pd.

(Dilip Gupta, J.)

(Siddhartha Varma, J.)